

SENATE No. 445

The Commonwealth of Massachusetts

PRESENTED BY:

Michael F. Rush

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to parental notification in public schools .

PETITION OF:

NAME:

Michael F. Rush

DISTRICT/ADDRESS:

Norfolk and Suffolk

SENATE No. 445

By Mr. Rush, a petition (accompanied by bill, Senate, No. 445) of Michael F. Rush for legislation relative to parental notification in public schools. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 348 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to parental notification in public schools .

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 71 of the General Laws is hereby amended in Section 48A in line 1 by inserting
2 before the word “School”, the following:- “(a)”

3 Chapter 71 of the General Laws is hereby amended in Section 48A by inserting in line 22
4 after the word “section”, the following:-

5 (b) Parental Notification of Law Enforcement Action on School Grounds

6 Section 1. Definitions

7 For the purpose of this section the following words shall have the following meanings

"School grounds", the real property comprising an active and operational elementary or secondary school during the regular hours in which school is in session and when students are present.

"School resource officer", a duly sworn municipal police officer with all necessary training, up-to-date certificates, including special school resource officer certification as required by subsection (b) of section 3 of chapter 6E or a special officer appointed by the chief of police charged with: (i) providing law enforcement; (ii) promoting school safety and security services to elementary and secondary public schools; and (iii) maintaining a positive school climate for all students, families and staff.

Section 2.

If local or state law enforcement is called to school grounds to make arrests or engage in activity to ensure the safety of students or faculty beyond the regular duties undertaken by that school's school resource officer, the principal of that school or superintendent of that school district or a designee of said principal or superintendent shall make a report by mail, electronic mail, or phone call of the incident to the parents or guardians of students who attend the school within twenty-four hours of the initial call to law enforcement. This report shall include the following information:

i.) The time at which law enforcement was called to the school.

ii.) The reason for which law enforcement was called, omitting any information which could be used to identify specific students or faculty.

iii.) The time at which law enforcement officers left school grounds.

29 The report shall not include any information which could be used to identify any specific
30 student or faculty member of the school.

31 Section 3.

32 This Section shall not limit the authority of a law enforcement officer to make an arrest
33 on school grounds. This Section shall not delay action by law enforcement officers in
34 circumstances that would cause a reasonable person to believe that urgent and immediate action
35 is necessary to do any of the following:

36 i.) Prevent bodily harm or injury to the student or any other person

37 ii.) Apprehend an armed or fleeing suspect

38 iii.) Prevent the destruction of evidence

39 iv.) Address an emergency or other dangerous situation

40 (c.) This Act shall take effect upon passage.